

30-757, effective July 1, 2024, a true and correct copy of which is attached as Exhibit 3.

The Court SUSTAINS the demurrer with thirty-days' leave to amend. Traditional writs of mandate are available to compel public agencies to perform acts required by law. (CCP §1085; *Siskiyou Hospital, Inc. v. County of Siskiyou* (2025) 109 Cal.App.5th 14, 36.) To obtain relief, a petitioner must demonstrate (1) no 'plain, speedy, and adequate' alternative remedy exists [Citation]; (2) 'a clear, present, ... ministerial duty on the part of the respondent'; and (3) a correlative 'clear, present, and beneficial right in the petitioner to the performance of that duty.' " (*People v. Picklesimer* (2010) 48 Cal.4th 330, 339-340.)

The FAP seeks a determination, pursuant to CCP section 1085, that MPP 30-757.17 as it relates to protective supervision, is invalid and illegal. However, the FAP relates to the application of the regulation to a prior determination that predates an amendment to the regulation related to supervision. However, to state a claim for writ of mandate, the writ must allege a present ministerial duty to act. Therefore, the FAP does not state a proper claim for writ of mandate as it does not clearly address the implications of the current regulation in place. In addition, the FAP is arguably uncertain as it is not clear whether the writ is addressed to the current regulation in place. Accordingly, the Court SUSTAINS the demurrer with leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2505048	MORENO VS INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB	MOTION TO BE RELIEVED AS COUNSEL AS TO INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2505048	MORENO VS INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB	MOTION TO COMPEL PLAINTIFF MIGUEL MORENO'S RESPONSES TO THE EXCHANGE'S FORM INTERROGATORIES, SET ONE

Tentative Ruling: The Court CONTINUES these motions to August 25, 2026 at 8:30 a.m. to allow for an authorized person to continue to prosecute this action.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2505048	MORENO VS INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB	MOTION TO COMPEL PLAINTIFF MIGUEL MORENO'S RESPONSES TO THE EXCHANGE'S FORM INTERROGATORIES, SET TWO

Tentative Ruling: See above.